

Your next steps after losing your mom

A personal checklist for the weeks ahead

Your situation

- Your mom passed away last Tuesday in Texas.
- She had a will, and your sister is the named executor.
- She owned a house in Austin.
- She had a life insurance policy.
- You're wondering about selling the house. That's a decision for your sister and a probate attorney.

Your next steps

1. Secure the Austin house: lock it, check on it regularly, and keep an eye on the mail.
An empty home needs care, and the mail will help you find accounts and bills.
2. Find the original will and any trust or letter of instruction.
Texas courts generally need the original will, so it's important to know where it is.
3. Order 10 to 15 certified death certificates.
Banks, insurers, and agencies each usually want an original.
4. Confirm that Social Security, her employer, any pension, and the life insurer have been notified.
Funeral homes often notify Social Security, but it's worth checking.
5. Ask your sister, as executor, to set up a first meeting with a Texas probate attorney.
An attorney can explain how the will gets approved by the court and what the executor is allowed to do.
6. Ask the attorney what court authority the executor needs before any decision about the house, including selling it.
Selling usually involves the executor having legal authority first, and Texas has its own rules.
7. Contact the life insurance company to ask how to file a claim.
Life insurance usually goes straight to the named beneficiaries and generally doesn't pass through the will.
8. Once the executor is authorized, get a tax ID (EIN) for the estate and open a separate estate bank account.
This keeps estate money apart from personal money and makes record keeping easier.
9. Start a list of her accounts, property, vehicles, and debts.
The executor will need a full picture of the estate.
10. Keep copies of everything and talk with a CPA about final tax returns.
A final personal return, and possibly an estate return, will be needed.

Time-sensitive items

- **Filing the will for probate in Texas**
Often within about 4 years of the death, but sooner is much easier. Confirm for your state with an attorney.
- **Final personal tax return**
Usually due in the spring after the year of death. Confirm with a CPA.
- **Life insurance claim**
No set rush, but claims are often filed within the first few weeks. Check with the insurer.
- **Notice to creditors**
Rules vary. Confirm for your state with a probate attorney.

Who to talk to

Probate attorney (Texas)

There is a will, a house, and a life insurance policy. An attorney can explain how probate works in Texas and what your sister's role as executor involves.

Questions to ask:

- Does this will need to go through probate, and what does that process look like in Texas?
- What authority does the executor need before the house can be sold, and how long does that usually take?
- What are the total costs and how are your fees structured?
- What will you need from us at the start, and what can we do ourselves?
- What should we do with the house while the estate is open?

CPA familiar with estates

A CPA can help with the final personal tax return and any estate tax returns.

Questions to ask:

- Will an estate return be needed in addition to a final personal return?
- What records should we gather?
- When should we get an EIN for the estate?
- How do you charge for this work?

Kindred Path does not recommend specific providers. Check any professional's license and fees before you hire them.

Documents and information to gather

- ☐ The original will
- ☐ Certified death certificates (10 to 15)
- ☐ The deed or other property papers for the Austin house
- ☐ Life insurance policy and the insurer's contact information

- ☐ Recent bank and retirement account statements
- ☐ Mortgage, tax, and utility bills for the house
- ☐ Vehicle titles
- ☐ Your mom's and your sister's photo IDs
- ☐ List of debts, credit cards, and subscriptions
- ☐ Names of her attorney, financial advisor, or CPA, if she had any

Already done

- ☒ Get a legal pronouncement of death
- ☒ Contact a funeral home